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The Gazette of the Democratic Socialist Republic of Sri Lanka
EXTRAORDINARY

අංක 1999/48 - 2016 දෙසැම්බර් මස 30 වැනි සිකුරාදා - 2016.12.30
No. 1999/48 - FRIDAY, DECEMBER 30, 2016

(Published by Authority)

PART I : SECTION (I) — GENERAL

Government Notifications

NATIONAL FILM CORPORATION OF SRI LANKA ACT No. 47 OF 1971

Orders made by the Minister of Parliamentary Reforms and Mass Media under Section 61 to be read with Section 5 of National Film Corporation of Sri Lanka Act No. 47 of 1971 as amended by Act No. 45 of 1980.

GAYANTHA KARUNATILLEKA,
Minister of Parliamentary Reforms & Mass Media.

Colombo,
15th December, 2016.

Orders

1. These Orders may be cited as National Film Corporation of Sri Lanka (The cinema Projector Specifications) Orders No. 1 of 2017 and shall be effective from 01st January, 2017.
2. Horizontal and vertical pixel increased value 2048×1080 (pixel 2,211,840) or 2K or 2.2 Megapixel shall be functional as the minimum value subject to terms and conditions issued for the relevant purpose by the National Film Corporation of Sri Lanka (hereinafter referred to as "Corporation") as digital projector specifications set out for all the cinemas operating in Sri Lanka.
3. (1) The minimum specifications contained in Order 2 above shall be applied in converting Projector methodology in a currently operative cinema or newly constructed cinema into digital technology and written notice shall be given to the Corporation on the said methodology. The Corporation shall specify terms and conditions pertaining to the relevant conversion or establishment and once such conversion or



establishment is over, an annually renewable digital film screening license shall be issued on rates of charge specified in the schedule hereto subject to terms and conditions stipulated by Chairman of the Corporation for such film hall.

- (2) All the cinemas which have received written approval of the Corporation and have converted their projector methodology into digital technology by now shall take measures to receive an annually renewable digital cinema screening license subject to terms and conditions specified by Chairman of the Corporation and on the rates specified in the schedule hereof.
 - (3) If any cinema continues to utilize 35 mm celluloid technology as its projector methodology, written notice of the same should be given to Chairman of the Corporation. An annually renewable 35 mm. celluloid technology film screening license shall be issued for such cinemas subject to terms and conditions specified by Chairman of the Corporation and on the rates of charge specified in the schedule hereto.
 - (4) The cinemas referred to at (1), (2) and (3) above shall not engage in public display of films hereafter under fees charged not complying with approved projector specifications mentioned above. However, films may be screened utilizing technical methodologies not complying with the above mentioned specifications under prior written approval of Chairman of the Corporation at a film festival or a show for aid or tribute or at special circumstances.
4. Any cinema which has received a license under these orders should comply to minimum technical standards, sanitary facilities and watching facilities specified in the relevant license and to terms and conditions stipulated by the Chairman.
5. (a) If the relevant licensee is in breach or violation of terms and conditions stipulated by the Chairman under Orders 3(4) and 4 above in the cinema for which a license has been issued:
- (b) The Chairman may stipulate any rule of invalidation of the license, suspension or imposing a fine.
6. Unless the context requires otherwise in these orders-

“Pixel” means the English word pixel.

“Mega Pixel” means the English word megapixel

“35 mm celluloid” means the words 35 millimeter celluloid in English.

“The cinemas” means all picture halls operating and due to operate in Sri Lanka.

“Films” means local or foreign films

“National Film Corporation of Sri Lanka” means National Film Corporation of Sri Lanka established under National Film Corporation of Sri Lanka Act No: 47 of 1971 as amended by Act No. 45 of 1980.

Schedule

The license fee specified at Orders No. 3(1), (2) and (3) should be Rs. Five thousand (Rs. 5,000/=) for the cinemas containing upto 150 seats, Rs. Seven thousand five hundred (Rs.7,500/=) for the cinemas containing upto 350 seats and Rs. Ten thousand (Rs. 10,000/=) for the cinemas containing over 350 seats.

NATIONAL FILM CORPORATION OF SRI LANKA ACT No. 47 OF 1971

Orders made by the Minister of Parliamentary Reforms and Mass Media under Section 61 to be read with Section 5 of the National Film Corporation of Sri Lanka Act No. 47 of 1971 as amended by the Act No. 45 of 1980.

GAYANTHA KARUNATILLEKA,
Minister of Parliamentary Reforms & Mass Media.

Colombo,
15th December, 2016.

Orders

1. These Orders may be cited as National Film Corporation of Sri Lanka (Miscellaneous Rates) Orders No. 2 of 2017 and be effective from 01st March, 2017.
2. (1) Once a film hall operating in Sri Lanka is converted into the Digital Projector methodology approved as per National Film Corporation of Sri Lanka (The cinema Projector Specifications) Orders No. 1 of 2016, the rate (hereinafter referred to as “the increase”) charged by every cinema on approval of the National Film Corporation of Sri Lanka (hereinafter referred to as “Corporation”) in addition to the entrance fee for a ticket and the entertainment levy,
 - (1.1) A rate of seven percent (7%) of value of the ticket should be charged for a local or foreign film.
 - (a) The said amount of seven percent (7%) should be divided in the portions of three rupees (Rs. 3/=) to the Producer if it is a local film and one rupee fifty cents (Rs. 1.50/=) each for the National Film Corporation Trust for Film Artists and Technicians No. 3 of 1986 and to the National Film Development Board established by the Gazette Extraordinary No. 799/1 of 27th December, 1993,
 - (b) two rupees for the Digital Projector Daily Ticket Record,
 - (c) once the above charges are deducted, ninety percent (90%) of the outstanding amount among the cinema which converted the cinema Projector Methodology as specified in the National Film Corporation of Sri Lanka (The cinema Projector Specifications) Orders No.1 of 2016 or the investor and the other ten percent (10%) for the Corporation.
 - (1.2) Seven point five percent (7.5%) of the value of a ticket shall be charged for a locally or internationally awarded film.
 - (d) The said amount of seven point five percent (7.5%) shall be divided in the portions of three rupees and fifty cents (Rs. 3.50/=) for the Producer if it is a local film and two rupees and fifty cents (Rs. 2.50/=) for the licensee if it is a foreign film
 - (e) two rupees (Rs. 2/=) to the cinema releasing it if it is a local film,
 - (f) one rupee and fifty cents (Rs. 1.50/=) to the cinema releasing it if it is a foreign film
 - (g) two rupees (Rs.2/=) for Digital Daily Ticketing Record

- (h) once the above charges are deducted, ninety percent (90%) of the outstanding amount among the cinema which converted the cinema Projector Methodology as specified in the National Film Corporation of Sri Lanka (The cinema Projector Specifications) Orders No.1 of 2016 or the investor and the other ten percent (10%) for the Corporation.
3. The outstanding amount after deduction of increase of the amount after selling tickets of a film and the entertainment levy is called "Film Rental".
4. The total film rental received during the inaugural round of its screening and during its first round of screening –
- (i) in case of a local film, should be divided as follows :-
- | | |
|----------------------------|-----|
| (i) Producer | 45% |
| (ii) The cinema | 45% |
| (iii) Licensed Distributor | 10% |
- (j) in case of a foreign film, should be divided as follows :-
- | | |
|----------------------------|-----|
| (i) importer | 40% |
| (ii) the cinema | 50% |
| (iii) Licensed Distributor | 10% |
5. The total film rental received by screening a film in a the cinema except during its inaugural round of screening and first round of screening should –
- (k) in case of a local film, be divided as follows :-
- | | |
|----------------------------|-----|
| (i) Producer | 30% |
| (ii) The cinema | 60% |
| (iii) Licensed Distributor | 10% |
- (l) in case of a foreign film, be divided as follows :-
- | | |
|----------------------------|-----|
| (i) Importer | 30% |
| (ii) The Cinema | 60% |
| (iii) Licensed Distributor | 10% |
6. Every cinema in default of remittance of any amount chargeable by the Corporation under these orders, shall pay as interest a proportion of one percent (1%) per month based on the amount so defaulted calculated on the monthly balance amount recoverable from such cinema.
7. Except at a film festival or a screening for aid or at an instance of a film with written permission of Chairman of the Corporation, no cinema should charge any fee above the total value of the increase contained in these orders, entertainment levy and film rental for screening a film.
8. The charge rate contained in orders 2 (a), (b), (d), (e), (f), & (g) above shall remain unchanged for a period of two (2) years from the date of commencement of implementation of these orders by each such cinemas. After passage of the initial term of two (2) years, such rates may be increased separately for a specific period of time by circulars issued by Chairman of the Corporation.
9. If any cinema subject to these orders is in breach or violation of terms and conditions set out by Chairman of the Corporation under the above orders :
- (b) the Chairman may make any rule of invalidation of the license or its suspension or imposing penalties.

10. National Film Corporation of Sri Lanka (Miscellaneous Rates) Orders No. 2 of 1993 published in the Gazette Extraordinary No. 799/1 of 27th December, 1993 and the National Film Corporation of Sri Lanka (Miscellaneous Rates) Orders No. 1 of 1996 published in the Gazette Extraordinary No. 946/9 of 24th October, 1996 and the National Film Corporation of Sri Lanka (Miscellaneous Rates) Orders No. 4 of 2007 published in the Gazette Extraordinary No. 1502/11 of 20th June 2007 are hereby repealed.

11. If not the context requires otherwise in these orders –

“Digital Projector Methodology” means rules specified by National Film Corporation of Sri Lanka (Cinema Projector Specifications) Orders No. 1 of 2016.

“Digital Daily Ticket Record” means the Electronic Daily Report.

“Cinemas” means all cinemas screening films operating and due to operate in Sri Lanka.

“Films” means local or foreign films.

“a local or foreign awarded film” means films defined in National Film Corporation of Sri Lanka (Film Distribution) Orders No.2 of 2016.

“National Film Corporation Trust for Film Artists and Technicians” means the National Film Corporation Trust for Film Artists and Technicians established by the Act No. 3 of 1986.

“National Film Development Fund” means the National Film Development Fund established by the Gazette Extraordinary No. 799/1 of 27th December, 1993.

“National Film Corporation of Sri Lanka” means the National Film Corporation of Sri Lanka established under the National Film Corporation of Sri Lanka Act No. 47 of 1971 as amended by the Act No. 45 of 1980.

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